

SENATE No. 1356

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fair hiring practices.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 1356

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1356) of Mark C. Montigny for legislation relative to fair hiring practices. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1207 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to fair hiring practices.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4 of chapter 151B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after subsection 1E the following subsection:-

3 1F. For an employer or employment agency, itself or through its agent, to:

4 (1) refuse to hire, employ, or consider a person for employment based on a person's status
5 as unemployed;

6 (2) limit, segregate or classify a person in any manner that would limit or tends to limit
7 his access to information about jobs, or consideration, screening or referral for consideration of
8 jobs because of his status as unemployed; or

(3) publish, print or circulate or cause to be published, printed or circulated in print, on the internet, or in any other medium, any advertisement, announcement, or posting for any job that includes:

(a) any provision stating or indicating that a person's status as unemployed disqualifies him from a job or referral for a job;

(b) any provision stating or indicating that an employer will not consider a person for employment based on that person's status as unemployed; or

(c) any provision stating or indicating that a person's current employment is a requirement for a job;

(4) use any form of application for employment or to make any inquiry in connection with prospective employment, which expresses, directly or indirectly, any limitation, specification or discrimination based on a person's status as unemployed; or

(5) fail or refuse to screen, consider, or refer a person for employment because of his status as unemployed;

For purposes of this subsection, the term "status as unemployed" shall mean a person's present or past unemployment, regardless of the length of time that the person has been unemployed.

Notwithstanding the provisions of this subsection, it shall not be an unlawful employment practice for an employer or employment agency to:

(1) circulate an announcement for a job vacancy that limits hiring to the employer's existing work force;

(2) consider a person's employment history or factual and objective reasons underlying a person's status as unemployed in assessing a person's ability to perform the job; or

(3) assess whether a person's employment in a similar or related job for a period of time reasonably proximate to the time of consideration of the person for new employment is a bona fide occupational qualification reasonably necessary for the successful performance of the job being filled.

(4) circulate an announcement for a job vacancy that contains provisions setting forth any qualifications for a job as permitted by law including the holding of a current or valid professional or occupational license, certificate, registration, permit, or other credential or a minimum level of education, training, or professional, occupational, or field experience.

SECTION 2. Said section 4 of chapter 151B is hereby amended by adding the following subsection after subsection 19:-

20. It shall be unlawful employment practice for an employer or employment agency, itself or through its agent, in connection with an application for employment, or the terms, conditions, or privileges of employment, or the transfer, promotion, bonding, or discharge of any person, or in any other matter relating to the employment of any person, to request or require that an employee or applicant disclose any user name, password, or other means for viewing or accessing the information contained on an employee's or applicant's personal account or service through any device that uses electronic signals to create, transmit, and receive information.

For purposes of this subsection, the term "personal account or service" shall mean any personal web site, internet web site, social networking account, email account, web-based account, or similar account but does not include any non-personal account or service created by

the employer or employment agency that provides access to the employer's or employment agency's computer network, information systems, or email system.

Notwithstanding the provisions of this subsection, it shall not be an unlawful employment practice for an employer or employment agency to:

(1) investigate an employee's actions for the purpose of ensuring compliance with applicable federal and state securities or financial law, statutes, and regulatory requirements based on the receipt of information about the use of a personal account or service by an employee for business purposes;

(2) investigate an employee's actions based on the receipt of information about unauthorized downloading or transferring of the employer's proprietary, confidential, or financial information to a personal account or service, or disclosure of the same on a personal account or service, by an employee; or

(3) monitor the usage and any information transmitted through the employer's or employment agency's electronic equipment without requesting or requiring that any employee or applicant disclose any user name, password, or other means for viewing or accessing the information contained on a personal account or service.